IN THE HIGH COURT OF JUDICATURE FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH.

In CRR No. 27 of 2025

The Deputy Registrar,
High Court, Chandigarh.

Title of Case

SAURABH

....PETITIONER

VERSUS

STATE OF HARYANA AND ANOTHER

.... RESPONDENTS

Sir,

Will you kindly treat the accompanying petition as an urgent one in accordance with the provisions of Rule 9, Chapter 3A, Volume V of the Rules and Orders of the High Court, Chandigarh.

2. The grounds of urgency are: **As prayed for.**

37.17
Rep. C
9/1/25

Yours faithfully

(SUKESH KUMAR JINDAL)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

Dated: 07.01.2025

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IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH.

CRR No._____ of 2025

Saurabh .... Petitioner

Versus

State of Haryana and another .... Respondents

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NOTE:

1. No sitting/former MP/MLA is involved in the present case.
2. No such or similar petition is pending before any Court of law.
3. Advance copy of the petition has been supplied to opposite side.

Chandigarh;

Dated: 07.01.2025

(Sukesh Kumar Jindal)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

OFFICE OF ADVOCATE GENERAL
22
07 JAN 2025
HARYANA

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IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH.

CRR No. 27 of 2025

Saurabh .... Petitioner

Versus

State of Haryana and another .... Respondents

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NOTE:

1. No sitting/former MP/MLA is involved in the present case.
2. No such or similar petition is pending before any Court of law.
3. Advance copy of the petition has been supplied to opposite side.
4. Victim age: 16 years.

Sukesh Jindal

Chandigarh;

Dated: 09.01.2025

(Sukesh Kumar Jindal)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

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IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH.

CRR No. 27 of 2025

Saurabh .... Petitioner

Versus

State of Haryana and another .... Respondents

COURT FEE : In Jail

Chandigarh;

Dated: 07.01.2025

(Sukesh Kumar Jindal)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

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IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH

CRR No. 27 of 2025

Saurabh

....Petitioner

Versus

State of Haryana and another

....Respondents

SYNOPSIS

24.07.2024 FIR No.44 was registered at Police Station Women, Panipat, under Sections 64(1), 95, 96, 98, 99, 115, 142, 143(4), 144(1), read with Section 3(5) of the BNSS, 2023, Sections 3, 4, 6 and 7 of the Immoral Traffic (Prevention) Act, 1956, Sections 6 and 17 of the POCSO Act, 2012 and Section 75 of the Juvenile Justice (Care and Protection of Children) Act, 2015. **(Annexure P-2/Pg.22)**.

20.12.2024 Application of the petitioner seeking his discharge under Section 250 of the BNSS, 2023 was dismissed by the learned Additional Sessions Judge, Panipat. **(Annexure P-1/ Pg.15)**.

GROUNDS

- The complainant - alleged victim does not name the petitioner in her complaint to the police or in her statement under Section 183 of the BNSS, 2023. She also does not identify him. She also does not say that the petitioner did any wrong act with her.
- Except the confessional statement of the petitioner and co-accused Kabir and Suresh made to the police while in police custody, there is absolutely no other evidence against the petitioner to presume that he has committed the alleged offence.

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- There is also no evidence, much less allegation, whatsoever that the petitioner caused any cruelty to the complainant - victim. Hence, Section 75 of the JJ Act is also not, prima facie, attracted qua him.
- The other offences under which challan has been filed, there is no witness or evidence, oral or documentary, to connect the petitioner. Thus, this is a case of no evidence against the petitioner.

Hence, the petitioner is filing the present petition seeking setting aside of the impugned order dated 20.12.2024 passed by the learned Additional Sessions Judge, Panipat, vide which, his application under Section 250 of the BNSS, 2023, seeking his discharge, has been wrongly and erroneously dismissed.

Chandigarh;

Dated: 07.01.2025

(Sukesh Kumar Jindal)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

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10849/HC Chd.—Item 6—Govt. Press, U.T., Chd.

Stereo H.C.J.D./B-2

Opening Sheet for Criminal Revision Applications

In the High Court of Judicature for the States of Punjab and Haryana at Chandigarh

JUDICIAL DEPARTMENT

Criminal Revision No. 27 of 2025

District	Date of filing Petition	Whether received from Petitioner in person or by Counsel or Agent	Stamp on Petition
Panipat	7.01.2025	Sukesh Kumar Jindal Adv	3-00

Saurabh s/o Jagdish r/o Tiranga Chowk Civil Lines Sonipat (Now Confined in Distt Jail Panipat. Petitioner

versus

State of Haryana Respondent

Petition for revision under section 401 of Crpc

of the order of ASJ-cum-Fast Track Court Panipat

dated 20-12 2024

Charge under section 3,4,6,7 Immoral Traffic Preventions Act Section 17,6 of POCSO Act, 115,142,143(4),144(1),3(5), 64(1),95,96,98,99 BNS, 2023.

Sentence Application U/S 250 of BNSS, 2023 dismissed on 20-12-24 and Charges Fram against the Petitioner.

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CRIMINAL REVISION UNDER SECTIONS 438 AND 442 OF THE BNSS, 2023, FOR SETTING ASIDE THE ORDER DATED 20.12.2024 (ANNEXURE P-1) PASSED BY THE LEARNED ADDITIONAL SESSIONS JUDGE, PANIPAT, IN CSI CASE NO. SC/379 OF 2024, WHEREBY, AN APPLICATION UNDER SECTION 250 OF THE BNSS, 2023, SEEKING DISCHARGE OF THE PETITIONER, HAS BEEN WRONGLY AND ERRONEOUSLY DISMISSED, IN CASE FIR NO.44 DATED 24.07.2024 UNDER SECTIONS 64(1), 95, 96, 98, 99, 115, 142, 143(4), 144(1) READ WITH SECTION 3(5) OF THE BNS, 2023, SECTIONS 3, 4, 6 AND 7 OF THE IMMORAL TRAFFIC (PREVENTION) ACT, 1956, SECTIONS 6 AND 17 OF THE POCSO ACT, 2012, AND SECTION 75 OF THE JUVENILE JUSTICE (CARE AND PROTECTION OF CHILDREN) ACT, 2015, REGISTERED AT POLICE STATION WOMEN, PANIPAT.

RESPECTFULLY SHOWETH:

1. That by way of the present petition, the petitioner seeks to set aside the order dated 20.12.2024 passed by Sh. Sukhpreet Singh, learned Additional Sessions Judge, Panipat, whereby, an application under Section 250 of the BNSS, 2023, filed by the petitioner seeking his discharge, has been dismissed. A copy of the said order dated 20.12.2024 is attached herewith as **Annexure P-1**.

2. That the impugned order suffers from patent illegality on the face of the record. It is submitted that there is not even a whisper against the petitioner in the challan and no incriminating evidence whatsoever was collected by the

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investigating agency against the petitioner. Thus, framing of charge against the petitioner by way of the impugned order is illegal and perverse.

3. That taking the challan and the accompanying documents therewith at its face value, no case, much less a prima facie, is made out to frame a charge against the petitioner. The learned Additional Sessions Judge has casually framed the charge against the petitioner by simply observing that it was not obligatory for him to record reasons.

4. That as per Section 250 of the BNSS, 2023, a statutory right has been given to an accused to seek his discharge by making a formal application. The petitioner filed such application which ought to have been decided by a reasoned order.

5. That the petitioner is a sweeper by profession and of youthful age and he is a poor person. He is innocent and he has been falsely implicated in the present case.

6. That facts of the case relevant for disposal of the present revision are that the petitioner filed an application under Section 250 of the BNSS, 2023, before the learned Additional Sessions Judge seeking his discharge by submitting that from the perusal of the challan and the documents accompanying therewith, there is no ground for presuming that he has committed any offence and, thus, there was not sufficient ground for proceeding against him and he deserved to be discharged.

7. That facts of the case are that on 24.07.2024, the complainant - alleged victim (name withheld to hide her identity) made a written complaint to the Superintendent of Police, Panipat, which was sent by him to the SHO, Police Station Women, Panipat, on which, the present FIR was registered. The complaint, as made by the complainant - alleged victim, is reproduced below which, after translation, reads, thus:

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"To

The worthy S.P.

Panipat.

Subject: Regarding rape.

Sir,

I, Jainab daughter of Salim, am a resident of Nangloi and I am aged 16 years. About a month back, my friend Aisha whose mobile number is 87501-42304 and who is a resident of Nangloi, and one boy Arif who was with Aisha and whose mobile number is 82296-87739 and who is also a resident of Nangloi, had dropped me at Hotel Neel Kamal situated at Sanoli Road, Panipat. They had said to me that I have to do sweeping and mopping work there but I am being subjected to wrong act every day for the last 15 days. There is one person named Kabir in the hotel who lives with his wife. There, he calls the boys from outside and gets wrong act done with me. Yesterday also, three persons have done wrong act with me. I cannot tell about their faces as it was dark. Yesterday night, on my protest, I was given a beating. Today on 24.07.2024, I have fled from the hotel on finding an opportunity. Someone told me that I should approach the Court. I am making this complaint to the worthy S.P. against all of them after getting it scribed. Legal action may be taken against all of them. Thanking you.

Sd/- Applicant Jainab daughter of Salim, resident of Nangloi."

A true translated copy of the said FIR is attached herewith as **Annexure P-2**.

8. That after registration of the FIR on 24.07.2024, statement of the complainant - alleged victim was got recorded under Section 183 of the BNSS, 2023, on 25.07.2024 which was recorded by Sh. Vikas Verma, learned JMIC, Panipat. The same, after translation, is reproduced below:

"It is stated that about a month back, I used to reside in Delhi with my parents. Then, my friend Aisha had brought me to Panipat by saying

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that there, I shall get work in the factory. Then, she told me that I shall get work at some home. Then, she left me at the Neel Kamal Guest House and told me that I was to do sweeping and mopping work there. I continued doing sweeping - mopping for 20 days. Then, my mother was to go to the village and I went to Delhi. Then, when I came back from Delhi, Kabir started getting done wrong acts with me in the Neel Kamal Guest House. On my refusal, I was given a beating. Then, his wife also asked me but I refused. Then, I escaped from there. That is all my statement."

9. That during investigation, named accused Kabir was arrested on 25.07.2024 and accused Suresh (Manager of the hotel) was arrested on 11.08.2024. Their confessional statements were recorded by the investigating officer while they were in police custody. However, their confessional statements did not lead to any recovery or discovery and, thus, the same are hit by Section 23 of the Bharatiya Sakshya Adhiniyam, 2023, (BSA) which says that no confession made to the police during investigation can be proved as against an accused.

10. That solely on the basis of the confessional statement of accused Kabir, the petitioner was arrested on 27.07.2024 and his confessional statement was recorded on 28.07.2024 which did not lead to any recovery or discovery and, thus, the same is also hit by Section 23 of the BSA, 2023, and the same cannot be proved as against him.

11. That accused Sandeep and Anita Rai alias Payal were arrested on 11.08.2024. They also did not name the petitioner in their confessional statements recorded by the police on 11.08.2024.

12. That in the challan that has been filed, the only role attributed to the petitioner, is as under:

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"Accused Saurabh had come to Hotel Neel Kamal through accused Suresh who used to do sweeping and mopping job in the hotel and on the asking of Suresh, in order to earn more profit, he started to supply girls in the Neel Kamal Hotel."

13. That except the above noted detailed facts, no other corroborative evidence was collected by the investigating agency.

14. That the petitioner deserves to be discharged under Section 250 of the BNSS, 2023, inter alia, on the following grounds:

a) That at the outset, it is submitted that except the confessional statement of the petitioner and co-accused Kabir and Suresh made to the police while in police custody, there is absolutely no other evidence against the petitioner to presume that he has committed the alleged offence.

It is submitted that as per Section 23 of the Bharatiya Sakshya Adhiniyam, 2023 (BSA), no confession made to a police officer shall be proved as against a person accused of any offence.

Thus, in the present case, confessional statements allegedly made by the petitioner and co-accused Kabir and Suresh to the police during investigation cannot be proved against the petitioner as per Section 23 of the BSA, 2023. In other words, the same is not the legal evidence and the same is solely not sufficient to frame a charge against the petitioner..

The law on the point is well settled.

In a recent judgment rendered in **Suresh Kumar vs State of Punjab bearing CRR-795-2020 decided on 23.10.2024**, it was laid down by our own Hon'ble High Court that where except the disclosure statement of the co-accused, the investigating agency had not gathered

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any other material or evidence to substantiate the claim of the prosecution, the accused must be forthwith discharged.

Further, in **Davneet Singh vs State of Haryana and others bearing CRM-M-17753-2015 decided on 14.10.2024**, it was held by our own Hon'ble High Court that merely appearance of the name of the accused in the statement of the co-accused is not sufficient to take cognizance and to frame charge, when in pursuance of such statement, no relevant fact was discovered.

There are also a catena of authorities on the point which shall be recited at the bar.

Thus, the petitioner deserves to be discharged under Section 250 of the BNSS, 2023, as there is not sufficient ground for proceeding against him.

b) That the complainant - alleged victim does not name the petitioner in her complaint to the police or in her statement under Section 183 of the BNSS, 2023. She does not even say that the petitioner was present at the Neel Kamal Guest House or that she saw him at any point of time. She also does not identify him. She also does not say that the petitioner did any wrong act with her. She also does not say that the petitioner pushed her into any flash business or asked her to do wrong act with anyone. She also does not say that the petitioner had any common intention or common object with any of the co-accused. Thus, the complainant - alleged victim does not assign any role whatsoever to the petitioner and she is completely silent qua him. Therefore, none of the offences under the POCSO Act, JJ Act or BNS is, prima facie, attracted qua the petitioner.

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c) That the petitioner admittedly, did not procure the complainant - victim, did not exploit her, did not push her into alleged trafficking, did not rape her, did not cause any hurt to her, did not kidnap her, did not hire/engage or employ her to commit any offence, did not buy or sell her for prostitution. Thus, no offence under any section of the BNS, 2023, or the POCSO Act is, prima facie, made out qua him to charge sheet him.

There is also no evidence, much less allegation, whatsoever that the petitioner caused any cruelty to the complainant - victim. Hence, Section 75 of the JJ Act is also not, prima facie, attracted qua him.

Also, there is no evidence whatsoever that the petitioner was using any premises for brothel or that he was living on the earning of prostitution or that he detained any person on the premises where prostitution was carried on. Thus, no offence under Immoral Traffic (Prevention) Act, 1956, is, prima facie, made out against him.

d) That in nut-shell, it follows that the complainant - victim does not stay the petitioner responsible for any misdoing or wrongdoing to her and she does not even name or identify him.

As regards the other offences under which challan has been filed, there is no witness or evidence, oral or documentary, to connect the petitioner. Thus, this is a case of no evidence against the petitioner.

e) That in her complaint and in her statement under Section 183 of the BNSS, 2023, the complainant has stayed Aisha and Arif responsible for bringing her to Panipat and pushing her into forced flash business. However, none of them has so far been arrested despite the fact that their mobile numbers, addresses etc. are available with the investigating agency. Even the challan, as filed, is silent qua them.

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It is submitted that even Vicky, owner of the Neel Kamal Guest House, whose complicity is writ charge in the whole episode, has also not been arrested.

This shows that the police investigation is unfair and an eye-wash.

The petitioner is only a sweeper and he has been arrested in a high-handed manner being a poor person without there being any legal evidence against him and he even not being named by the complainant - victim. The big fish, who are the real culprits, are roaming around and the police is sitting silent qua them for obvious reasons. This Hon'ble Court may take judicial notice of the same and comment on the working of the investigating agency.

f) That the complainant does not say even a word in her complaint or in her statement under Section 183 BNSS that any sex racket was operating at the Neel Kamal Guest House or that there was any brothel operating there. She also does not say that any girls used to come there for prostitution.

Further, no sex racket was unearthed by the police. There is no evidence worth the name that the petitioner supplied any girls. No statement of any girl was recorded who may have been a part of the alleged prostitution business. No CCTV footage was collected by the investigating agency.

Thus, all such allegations are in the air without any evidence whatsoever. Therefore, no offence under any provision of the Immoral Traffic (Prevention) Act, 1956 is, prima facie, made out.

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In any case, as far as the petitioner is concerned, there is absolutely no evidence against him qua any of the offences, under which, he has been charge-sheeted.

g) That the petitioner is a sweeper and he is a poor person and he has been made the scapegoat. The police investigation has also done injustice to the complainant - victim by its cover-up investigation and letting off the main culprits. This Hon'ble Court may kindly consider not only the apathy of the petitioner but also that of the complainant - victim and provide justice to them.

h) That in view of the submissions made herein above which are based on fact and law, it is submitted that the petitioner is innocent and there is no ground for presuming that he has committed any alleged offence and, thus, there is not sufficient ground for proceeding against him and he deserved to be discharged under Section 250 of the BNSS, 2023.

15. That viewed from any angle, the impugned order dated 20.12.2024 passed by the learned Additional Sessions Judge, Panipat, is patently illegal and erroneous besides being perverse and non-speaking and, thus, the same is wholly unsustainable.

PRAYER:

It is, therefore, most respectfully prayed that the present petition may kindly be allowed and the order dated 20.12.2024 passed by the learned Additional Sessions Judge, Panipat, in CSI No.SC/379 of 2024, dismissing the application under Section 250 of the BNSS, 2023, seeking discharge of the petitioner, may kindly be set aside and the petitioner may kindly be discharged of the charges framed against him by the learned Additional Sessions Judge, Panipat, in case FIR No.44 dated 24.07.2024 under Sections 64(1), 95, 96, 98, 99, 115, 142, 143(4), 144(1) read with Section 3(5) of the BNS, 2023, Sections 3, 4, 6 and 7 of the

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Immoral Traffic (Prevention) Act, 1956, Sections 6 and 17 of the POCSO Act, 2012, and Section 75 of the Juvenile Justice (Care And Protection Of Children) Act, 2015, registered at police station Women, Panipat.

It is further prayed that during the pendency of the present petition, further proceedings before the learned trial Court may kindly be stayed qua the petitioner.

It is further prayed that filing of certified copies of the Annexures may kindly be exempted and true translation/typed copies thereof may kindly be taken on record.

NOTE:

(i) No such or similar petition is pending before the Court of Session or any other Court at the time of filing of this petition.

(ii) Affidavit not required as the petitioner is confined in District Jail, Panipat.

Chandigarh;

Dated: 07.01.2025

(Sukesh Kumar Jindal)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

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IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH.

CRR No._____ of 2025

MEMO OF PARTIES

Saurabh son of Jagdish, aged 23 years, resident of Tiranga Chowk, Civil Lines, Sonipat – 132040, Haryana.

(Aadhaar Card No.9194 7462 4010)

(Mobile No.90345-14346)

(Presently, the petitioner is confined in District Jail, Panipat)

NOTE: As per the information supplied, the petitioner has never been declared as a proclaimed offender.

....Petitioner

Versus

1. State of Haryana.
2. Jainab daughter of Salim, resident of Village Bhagalpur, Tehsil Bariarpur, District Munger, Bihar. IInd Address as per the Challan: House No.187A, Nangloi, Delhi. .... Complainant.

....Respondents

Chandigarh;

Dated: 07.01.2025

(Sukesh Kumar Jindal)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

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IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH.

CRR No. 27 of 2025

MEMO OF PARTIES

Saurabh son of Jagdish, aged 23 years, resident of Tiranga Chowk, Civil Lines, Sonipat – 132040, Haryana.

(Aadhaar Card No.9194 7462 4010)

(Mobile No.90345-14346)

(Presently, the petitioner is confined in District Jail, Panipat)

NOTE: As per the information supplied, the petitioner has never been declared as a proclaimed offender.

....Petitioner

Versus

1. State of Haryana.
2. xxxxxx daughter of xxxx, resident of Village Bhagalpur, Tehsil Bariarpur, District Munger, Bihar. IInd Address as per the Challan: House No.187A, Nangloi, Delhi. .... Complainant.

....Respondents

Chandigarh;

Dated: 09.01.2025

(Sukesh Kumar Jindal)
P-934/2011 (PH225143)
Advocate
Counsel for the petitioner

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ANNEXURE P-1

In the Court of:- SH Sukhpreet Singh, FTC (POCSO)

Ld. ADJ/ASJ/MACT, Panipat.

C.I.S Case No. SC/379/2024

Case No. ——

Date of Institution 23-09-2024

N.D.H/D.O.D: 30-01-2025

State Versus

1. Kabir son of Gaffar Shek, age 32 years, R/o Dankuni, Hooghly, West Bengal

2. Saurabh son of Jagdish, age 24 years, r/o Tringa Chowk, Civil Line, Sonepat

3. Anita son of Aakhor Dey Ray, age 34 years, r/o Sondhapur, Jatal Road, Panipat.

4. Sandeep son of Charan Singh, age 38 years, r/o Balmiki Mohalla, Samalkha

5. Suresh son of Bhule Ram, age 46 years, r/o Ekta Bihar Colony, Panipat

F.I.R. No. 44 dated 24.07.2024
Challan filed under Sections:
3, 4, 6, 7 Immoral Traffic Prevention Act, 1956, Section 17, 6 of POCSO Act, 115,142, 143(4), 144(1), 3(5), 64(1), 95, 96, 98, 99 BNS, 2023
Police Station: Women, Panipat.

CERTIFIED COPY OF Order dated 20-12-2024

Seal of Examiner Sessions Court Central Copying Agency Panipat

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ATTESTED
EXAMINER
29 DEC 2024

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Present: Sh. Mukesh Kumar, PP for the State.
Accused Suresh in custody represented by Sh. Pawan Kumar, Advocate
Accused Kabir in custody represented by Sh. Sohan Gaur, Advocate
Accused Sandeep, Anita Rai in custody.
represented by Shri Rajender, Legal Aid Counsel.
Accused Saurabh in custody represented by Tejinder Malik, Advocate

Reply to the application under Section 250 of BNSS for discharge of the accused Sourabh and Suresh not filed but arguments heard. Written arguments also filed by counsel for accused Sourabh. Same be placed on file and perused.

Learned defence counsels for the accused, Sourabh and Suresh has argued that no case is made out to frame the charge against the accused Sourabh and Suresh, as there is no material on the file. It was further argued by learned defence counsel that accused persons namely Sourabh and Suresh have been falsely implicated in the present case. It was further argued by learned counsel for accused that at the time of framing of charge, the court has to consider the entire evidence collected by Investigating officer or the evidence by the accused desired to produce on the file. It was further argued by learned counsel for accused that at the time of framing of charge, the accused can bring to the notice of the court about the relevant documents, by which it can be proved that accused have been falsely implicated in the present case. It was further argued by learned defence counsel that no prima facie case is made out against the accused Sourabh and Suresh and prayed that accused persons Sourabh and Suresh may kindly be discharged for the offence, for which they are facing trial. The counsel for the remaining accused also argued on the similar lines.

On the other hand, learned Public Prosecutor for the State argued that there are sufficient evidence on the file to frame the charge against the accused persons. It was further argued by learned Public

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(Sukhpreet Singh)
ASJ-CUM-FAST Track Court, Panipat
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Prosecutor for the State that at the time of framing of charge, the trial court has not to give its opinion as, there are sufficient material on file to frame the charge against all the accused. It was further argued by learned Public Prosecutor for the State that at the time of framing the charge, probative value of the materials on record cannot be gone into and the materials brought on record by the prosecution has to be accepted as true. It was further argued that at the stage of framing charge, court is to see if the material and documents placed before it disclose ingredients of offence. The court is not required to appreciate evidence to conclude whether the materials produced are sufficient or not for convicting the accused. It was further argued that there are sufficient material on the file to frame the charge against the accused.

After hearing the contentions raised by learned counsel for the accused and learned Public Prosecutor for the State, this court is of the opinion that all the contentions raised by learned counsel for the accused are devoid of merit and the same is not forceful.

It is settled law that at the time of framing of charge, the court is required to see a prima facie case and not to weigh the evidence meticulously so as to infer that the same would lead to conviction or not. When a court frames the charge, then it is not the duty of the court to record the reasons. The court has to form an opinion only. In this regard, I dray my support from the observation held in case titled as ***Lalu Prasad @ Lalu Prasad Yadav Versus State of Bihar through CBI (AHD) Patna, 2007(1) ACJ, 507 (SC)*** wherein the Hon'ble Apex Court has held that:-

> **"Charge-Framing- Reasons for framing charge need not to be recorded. Courts has to form an opinion only- However, in case an order of discharge is passed, it is imperative on the court to record reasons- If reasons are recorded in case of framing of charge, there is likelihood of prejudicing the case of accused put on trial."**

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Further, I draw my support from the observation held in case titled as ***State of Orissa and another Versus Saroj Kumar Sahoo, 2006(1) RCR (Criminal) 324-325*** wherein the Hon'ble Apex Court has held that:-

> **"Framing of charge- At the stage of framing of charge, court has to see only prima facie be satisfied about existence of sufficient ground for proceeding against the accused- For that limited purpose, the court can evaluate material and documents on records but it cannot appreciate evidence. The court is not required to appreciate evidence to conclude whether the materials produced are sufficient or not for convicting the accused."**

Further, in ***Rajbir Singh Versus State of U.P. and another 2006(2) RCR (Criminal) 410-411*** wherein the Hon'ble Apex Court has held that:-

> **"Discharge of accused at the stage of framing charge- At this stage, the court is not to see whether there is sufficient ground for conviction of the accused or whether the trial is sure to end in his conviction."**

Further, in ***Balraj Kumar Versus Smt.Kuldeep Kaur 2006(4) RCR (Criminal) 185*** wherein our own Hon'ble High Court has held that:-

> **"Discharge of accused- Only prima facie case is required to be seen. Detailed and meticulous reference to the evidence, defence and other considerations is not required- Matter of defence can be raised at the appropriate stage."**

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Further, I am of the considered view that at the stage of framing of charge, the court should not enter upon the process of evaluating the evidence by deciding its worth or credibility. There is no legal requirement that the court should pass an order specifying the reasons as to why it opts to do so. Framing of charge itself is a prima facie order that the court has formed an opinion, upon considering the evidence and other documents and after hearing both the sides, that there is ground for presuming that the accused have committed the offence concerned. This fact has also been strengthen an authority cited as ***Kanti Bhadra Shah Versus State of West Bengal 2000(1) RCR (Criminal) 407*** wherein the Hon'ble Apex Court has held that:-

> **"Charge sheet- Discharge of accused- Trial before court of Session, the judge is required to record reasons only if he decides to discharge the accused, but if he is to frame the charge he may do so without recording his reasons for showing why he framed the charge.**
>
> **Interlocutory orders in Criminal Trial- To avoid snail paced progress of proceedings, it is quite unnecessary for courts to write detailed orders regarding issuing process, remanding the accused to custody, framing of charges, passing over to next stage in trial."**

It is settled law that at the time of framing of charge material brought on record by the prosecution has to be accepted by the court, it is not to be seen whether the said material was sufficient to convict the accused or not. In this regard, I draw my support from the observation held in case titled as **Rajinder Partap Garg vs. H.S. Randhawa 2007(1) RCR (Criminal) 794 wherein it is held that;**

> **"At the time of framing of charge evidence is not to be evaluated in order to determine its correctness, credibility, legality or validity. At the time of framing charge probative value of the material on**

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record can not be done into. The material brought on record by prosecution has to be accepted as true at the time of framing charge and it is not to be seen whether the said material was sufficient to convict the accused or not."

Also, strength can be derived from the law laid down in case cited as **Onkar Nath Mishra and others Vs. State (NCT of Delhi) and another 2008(1) RCR Criminal SC 336, wherein it is held that;**

> **"At the stage of framing charge prima facie court has to consider whether there is sufficient ground for proceedings against the accused."**

The Hon'ble Apex Court in case titled as **P.Vijayan Versus State of Kerala and another 2010 (1) RCR (Criminal 826 has held that;**

> **"Challan put by the prosecution. At the time of framing of the charges the probative value of the material on record cannot be gone into, and the material brought on record by the prosecution has to be accepted as true."**

The Hon'ble Apex Court in case titled as ***Sheoraj Singh Ahlawat and others Versus State of Uttar Pradesh and another 2013(1) RCR (Criminal) 153 has held that;***

> **"Accused not be discharged at the stage of framing charge when allegations are specific. This at times put an innocent party to avoidable harassment, but so long as the legal requirement and settled principles do not permit a discharge, the court would find it difficult to do much."**

In the present case, when the accused persons have been arrested, then they have suffered their disclosure statements. The investigating officer has collected sufficient evidence about the involvement of the accused in the present case. Further, the co-accused

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are yet to be arrested. So, there are sufficient material on the record to frame the charge against the accused under section 17 read with Section 6 of POCSO Act, under Section 3, 4, 5, 6 The Immoral Traffic (Prevention) Act, 1956, 115(2)/142/143(4)/144/95/96/98/99 read with Section 3(5) BNS, 2023. Further, it is settled proposition of law that court is not required to appreciate evidence to conclude whether the materials produced are sufficient or not for convicting the accused. At this stage, the framing of charge, the reasons for framing charge need not to be recorded. Courts has to form an opinion only. The only prima facie case is required to be seen. The authority relied upon by the counsel for the accused in his written arguments is not applicable to the facts and circumstance of the present case. As such, there are sufficient material on the record to frame the charge against the all accused persons. File be put after some time for framing of charge.

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ANNEXURE P-2

TRUE TRANSLATION OF RELEVANT EXTRACT OF FIR NO.44 DATED 24.07.2024 UNDER SECTIONS 64(1), 95, 96, 98, 99, 115, 142, 143(4), 144(1) READ WITH SECTION 3(5) OF THE BNS, 2023, SECTIONS 3, 4, 6 AND 7 OF THE IMMORAL TRAFFIC (PREVENTION) ACT, 1956, SECTIONS 6 AND 17 OF THE POCSO ACT, 2012, AND SECTION 75 OF THE JUVENILE JUSTICE (CARE AND PROTECTION OF CHILDREN) ACT, 2015, REGISTERED AT POLICE STATION WOMEN, PANIPAT.

"To

The worthy S.P.

Panipat.

Subject: Regarding rape.

Sir,

I, Jainab daughter of Salim, am a resident of Nangloi and I am aged 16 years. About a month back, my friend Aisha whose mobile number is 87501-42304 and who is a resident of Nangloi, and one boy Arif who was with Aisha and whose mobile number is 82296-87739 and who is also a resident of Nangloi, had dropped me at Hotel Neel Kamal situated at Sanoli Road, Panipat. They had said to me that I have to do sweeping and mopping work there but I am being subjected to wrong act every day for the last 15 days. There is one person named Kabir in the hotel who lives with his wife. There, he calls the boys from outside and gets wrong act done with me. Yesterday also, three persons have done wrong act with me. I cannot tell about their faces as it was dark. Yesterday night, on my protest, I was given a beating. Today on 24.07.2024, I have fled from the hotel on finding an opportunity. Someone told me that I should approach the Court. I am making this complaint to the worthy S.P. against all of them after getting it scribed. Legal action may be taken against all of them. Thanking you.

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Sd/- Applicant Jainab daughter of
Salim, resident of Nangloi.

Dated: 24.07.2024."

Certified to be true translation

Advocate

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FIR No-44 dated 24.07.2024
PS:- Women, Pnp

24

POWER OF ATTORNEY

IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH.

IN CRR NO. 27 OF 2025

Saurabh PETITIONER(s)/APPELLANT(s) /APPLICANT(s)

VERSUS

State of Haryana DEFENDANT(s)/RESPONDENT(s)

Know all to whom these presents shall come that I/we Saurabh s/o Sh. Jagdish r/o Tiranga chowk, Civil Lines, Sonipat do hereby appoint, **SUKESH KUMAR JINDAL Advocate, PUNJAB & HARYANA HIGH COURT, CHANDIGARH**, hereinafter called the Advocate to be my/our Advocate in the above noted cause and authorize him:- To act, appear and plead in the above noted-cause in the Court, or in any other Court in which the same may be tried or heard and also in the appellate courts. To sign, verify & present pleadings, cross-objections or petitions for execution, review, revision, withdrawal, compromise or other petitions or affidavits or other documents as shall be deemed necessary or advisable for the prosecutions for the cause in all its stages.

To file and take back documents, to withdraw or compromise the any difference or disputes that may arise touching or in any manner r osit, draw receive moneys and grant receipts thereof and to do all o y be necessary to be done for the progress and in the course of the sai t any other legal practitioner authorizing him to exercise power and the Advocate or whenever he may think fit to do so.

And I/We, the undersigned, do hereby agree to ratify and confirm all acts done by the advocate or his substitute in the matter as my/our own acts as if done by me/us for all intents and purposes.

And I/We undertake that I/We or my/our duly authorized agent would appear in the court on all hearings.

And I/We, undersigned, do hereby agree that in the event of the above cause being taken up on tour, I/We, shall pay extra fee. And I/We undersigned do hereby agree that on the call of the case in the court. I/We shall inform the advocate.

And I/We hereby agree not to hold the Advocate or his substitute responsible for the result of the said cause in consequence of his absence from the Court when the said cause is called up for hearing or for any act of omission or commission of the said Advocate or substitute.

And I/We hereby agree that in the event of the whole or any part of the fee agreed by me/us to be paid to the Advocate remaining unpaid, he shall be entitled to withdraw from the prosecution of the said cause until the same is paid up. If any costs are allowed for adjournment or otherwise, the advocate would be entitled to the same.

In witness whereof I/We hereunto set my/our hand to these presents the contents of which have been read over and explained to me/us and understood by me/us this the 25.12 day of Dec 2024.

Accepted

SUKESH KUMAR JINDAL
ADVOCATE (Regn. No.P-934/2011).
(NOR: PH225143)
Mobile No.09466-777-777

(CLIENT)

ATTESTED (ONLY LTI)
25/12/24
Dy. Superintendent,
District Prison Panipat (Hr.)

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VERNACULAR OF ANNEXURE P-2. 25

Haryana Police (हरियाणा पुलिस)

I.I.F.-I (एकीकृत जाँच फार्म-I)

FIRST INFORMATION REPORT
(Under Section 173 B.N.S.S)

प्रथम सूचना रिपोर्ट
(धारा 173 बी एन एस एस के तहत)

1. District (जिला): PANIPAT — P.S. (थाना): WOMEN POLICE STATION, PANIPAT — Year (वर्ष): 2024

FIR No. (प्र.सू.रि. सं.): 0044 — Date and Time of FIR (प्र.सू.रि. की दिनांक और समय): 24/07/2024 20:36 hrs

2.

S.No. (क्र.सं.)	Acts (अधिनियम)	Sections (धारा(एँ))
1	THE PROTECTION OF CHILDREN FROM SEXUAL OFFENCE ACT, 2012	17
2	THE PROTECTION OF CHILDREN FROM SEXUAL OFFENCE ACT, 2012	6
3	JUVENILE JUSTICE (CARE AND PROTECTION OF CHILDREN) ACT, 2015	75
4	THE BHARATIYA NYAYA SANHITA (BNS), 2023	115
5	THE BHARATIYA NYAYA SANHITA (BNS), 2023	142
6	THE BHARATIYA NYAYA SANHITA (BNS), 2023	143(4)
7	THE BHARATIYA NYAYA SANHITA (BNS), 2023	144(1)
8	THE BHARATIYA NYAYA SANHITA (BNS), 2023	3(5)
9	THE BHARATIYA NYAYA SANHITA (BNS), 2023	64(1)
10	THE BHARATIYA NYAYA SANHITA (BNS), 2023	95
11	THE BHARATIYA NYAYA SANHITA (BNS), 2023	96
12	THE BHARATIYA NYAYA SANHITA (BNS), 2023	98
13	THE BHARATIYA NYAYA SANHITA (BNS), 2023	99

Received today through Ld. Police
Vikas Verma
Judicial Magistrate Ist Class
Panipat 25-7-24

3. (a) Occurrence of offence (अपराध की घटना):

I Day (दिन): Intervening Days — Date from (दिनांक से): 23/07/2024 — Date To (दिनांक तक): 24/07/2024

Time Period (समय अवधि): — Time From (समय से): 14:00 hrs — Time To (समय तक): 18:00 hrs

(b) Information received at P.S. (थाना जहां सूचना प्राप्त हुई): — Date (दिनांक): 24/07/2024 — Time (समय): 18:00 hrs

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(c) General Diary Reference (रोजनामचा संदर्भ): Entry No. (प्रविष्टि सं.): 026 Date and Time (दिनांक और समय): 24/07/2024 18:37 hrs

4. Type of Information (सूचना का प्रकार): Written

5. Place of Occurrence (घटनास्थल):

1. (a) Direction and distance from P.S. (थाना से दूरी और दिशा): SOUTH-EAST, 4 Km(s) Beat No. (बीट सं.):

(b) Address (पता): नील कमल गेस्ट हाउस पानीपत,

(c) In case, outside the limit of this Police Station, then Name of P.S. (यदि थाना सीमा के बाहर है तो थाना का नाम):

District (State) (जिला (राज्य)):

6. Complainant / Informant (शिकायतकर्ता / सूचनाकर्ता):

(a) Name (नाम): जैनव

(b) Father's Name (पिताका नाम): सलीम

(c) Date/Year of Birth (जन्म तिथि / वर्ष): 2008 (d) Nationality (राष्ट्रीयता): INDIA

(e) UID No. (यूआईडी सं.):

(f) Passport No. (पासपोर्ट सं.):

Date of Issue (जारी करने की दिनांक): Place of Issue (जारी करने का स्थान):

(g) ID Details (Ration Card, Voter ID Card, Passport, UID No., Driving License, PAN) (पहचान विवरण (राशन कार्ड ,मतदाता कार्ड ,पासपोर्ट, यूआईडी सं., ड्राइविंग लाइसेंस, पैन कार्ड))

S. No. (क्र.सं.)	ID Type (पहचान पत्र का प्रकार)	ID Number (पहचान संख्या)

(h) Occupation (व्यवसाय):

(i) Address (पता):

S.No. (क्र.सं.)	Address Type (पता का प्रकार)	Address (पता)
1	Present Address	भगलपुर, BARIARPUR, MUNGER, BIHAR, INDIA
2	Permanent Address	नागलोई, ANAND PARBAT, CENTRAL, DELHI, INDIA

(j) Phone number (दूरभाष सं.): Mobile (मोबाइल सं.): 91-8750142304

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7. Details of known / suspected / unknown accused with full particulars (ज्ञात / संदिग्ध / अज्ञात अभियुक्त का पूरे विवरण सहित वर्णन):

S. No. (क्र.सं.)	Name (नाम)	Alias (उपनाम)	Relative's Name (रिश्तेदार का नाम)	Present Address(वर्तमान पता)
1	आईशा			1. नामालुम,WOMEN POLICE STATION,PANIPAT,PANIPAT,HARYANA,INDIA
2	आशिफ			1. नामालुम,WOMEN POLICE STATION,PANIPAT,PANIPAT,HARYANA,INDIA
3	कबीर व अन्य व्यक्ति			1. नामालुम,WOMEN POLICE STATION,PANIPAT,PANIPAT,HARYANA,INDIA

8. Reasons for delay in reporting by the complainant / informant (शिकायतकर्ता / सूचनाकर्ता द्वारा रिपोर्ट देरी से दर्ज कराने के कारण):

श्रीमान जी ,मुझे बन्दी बनाकर रखा गया जो मौका मिलने पर वहा से बाहर निकलकर SP OFFICE दरखास्त दी है

9. Particulars of properties of interest (संबन्धित सम्पति का विवरण):

S. No. (क्र.सं.)	Propertty Category (सम्पति श्रेणी)	Property Type (सम्पति के प्रकार)	Description (विवरण)	Value(In Rs/-) (मूल्य (रु में))

10. Total value of property (In Rs/-) (सम्पति का कुल मूल्य(रु में)):

11. Inquest Report / U.D. case No., if any (मृत्यु समीक्षा रिपोर्ट / यू.डी.प्रकरण सं., यदि कोई हो):

S. No. (क्र.सं.)	UIDB Number (यू.डी.प्रकरण सं.)

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12. **First Information contents (प्रथम सूचना तथ्य):**

आज एक दरखास्त नम्बरी 1589-पेशी दिनांक 24.7.2024 बजिरया डाक थाना महिला पानीपत मे प्राप्त हुई नकल दरखास्त जैल है- सेवा मे SP साहब पानीपत विषय–रेप करने बारे श्रीमान जी मै जैनव पुत्री सलीम वासी नागलोई की रहने वाली हुँ मेरी उम्र 16 साल है मुझे एक महीना पहले मेरी दोस्त आईशा जिसका मो न-8750142304 है यह नागलोई की रहने वाली है ओर आईशा के साथ एक लडका आशीफ भी था जिसका मो न-8229687739 है यह भी नागलोई का रहने वाला है जो मुझे पानीपत मे नीलकमल होटल मे छोडकर चले गये थे जो सनौली रोड पर है ।उन्होने कहा कि यहा तुझे झाडु-पौचे का काम करना है ओर मुझसे 15 दिन से डैली गलत काम करवा रहे है होटल मे कबीर नाम का व्यक्ति अपनी पत्नी के साथ रहता है वह वहा बाहर से लडको को बुलाता है ओर वहा मुझसे गलत काम करवाता है कल भी 3 व्यक्तियो ने मेरे साथ गलत काम किया अन्धेरा होने के कारण मै उनका चेहरा नही बता सकती । कल रात को मेरा विरोध करने पर मेरे साथ मारपीट की ।आज दिनांक 24.7.2024 को मै मौका देखकर होटल से भाग आई ओर किसी ने मुझ से कहा आप कोर्ट मे चले जाओ। मैने इन सभी के खिलाफ जो दरखास्त लिखवा कर मेरे कहे अनुसार SP साहब को दे दी ।इन सभी के खिलाफ कानुनी कार्यवाही की जाये ।धन्यवाद SD जनैव प्रार्थीया जैनव पुत्री सलीम वासी नागलोई DT 24.7.2024 अज थाना-हस्ब आमद दरखास्त नम्बरी 1589-पेशी दिनांक 24.7.2024 बजिरया डाक थाना में प्राप्त होने पर अभियोग न0 44 दिनांक 24.07.2024 धारा 64(1),95,96,98,99, 115(2),142,143,144(1),3(5), BNS,6,17 POCSO ACT,75 JJ ACT थाना महिला जिला पानीपत दर्ज रजिस्टर किया जाकर कम्प्युटर द्वारा FIR की प्रतियां तैयार की गई। नकल मिशल पुलिस मय असल तहरीर आगामी तफतीश के लिए प्राप्त की गई। जो अब मन SI/SHO मय ASI सन्तोष 61 मय मुदईया जनैव के बराये तफतीश रवाना मौका घटना स्थल का होती हुँ बकाया नकुलात FIR प्रतियां बतौर स्पैशल रिपोर्ट तैयार करके बजरिया ई-मेल व बदस्त महिला सिपाही अजली 1728 के डाक द्वारा ईलाका मैजिस्ट्रैट साहब व सम्बन्धित अफसरान बाला की सेवा में भेजी जा रही है। श्रीमान जी, अभियोग SHO साहब के CCTNS CODE मे व SI/SHO आशा 901/FBD की हाजरी में दर्ज किया गया। जिसकी अनुसंधानकर्ता SI/SHO आशा 901/FBD है।

13. **Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2. (की गयी कार्यवाही : चूंकि उपरोक्त जानकारी से पता चलता है कि अपराध करने का तरीका मद सं. 2 में उल्लेख धारा के तहत है.):**

(1) **Registered the case and took up the investigation (प्रकरण दर्ज किया गया और जांच के लिए लिया गया):** Asha (SI (Sub-Inspector))/901 **or (या)**

(2) **Directed (Name of I.O.) (जांच अधिकारी का नाम):** **Rank (पद):**

No. (सं.): **to take up the Investigation (को जांच अपने पास में लेने के लिए निर्देश दिया गया)**
or (या)

(3) **Refused investigation due to (जांच के लिए):** **or (के कारण इंकार किया या)**

(4) **Transferred to P.S. (थाना):** **District (ज़िला):**

on point of jurisdiction (को क्षेत्राधिकार के कारण। हस्तांतरित).

F.I.R. read over to the complainant / informant, admitted to be correctly recorded and a copy given to the complainant /informant, free of cost. (शिकायतकर्ता / सूचनाकर्ता को प्राथमिकी पढ़ कर सुनाई गयी, सही दर्ज हुई माना और एक कॉपी निशुल्क शिकायतकर्ता को दी गयी)

R.O.A.C.
(आर.ओ.ए.सी.)

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Signature of Officer in charge, Police Station
(थाना प्रभारी के हस्ताक्षर)

Name (नाम): Asha

Rank (पद): SI (Sub-Inspector)

No. (सं.): 901

14. Signature / Thumb impression of the complainant / informant (शिकायतकर्ता / सूचनाकर्ता के हस्ताक्षर /अंगूठे का निशान)

15. Date and time of dispatch to the court (अदालत में प्रेषण की दिनांक और समय):

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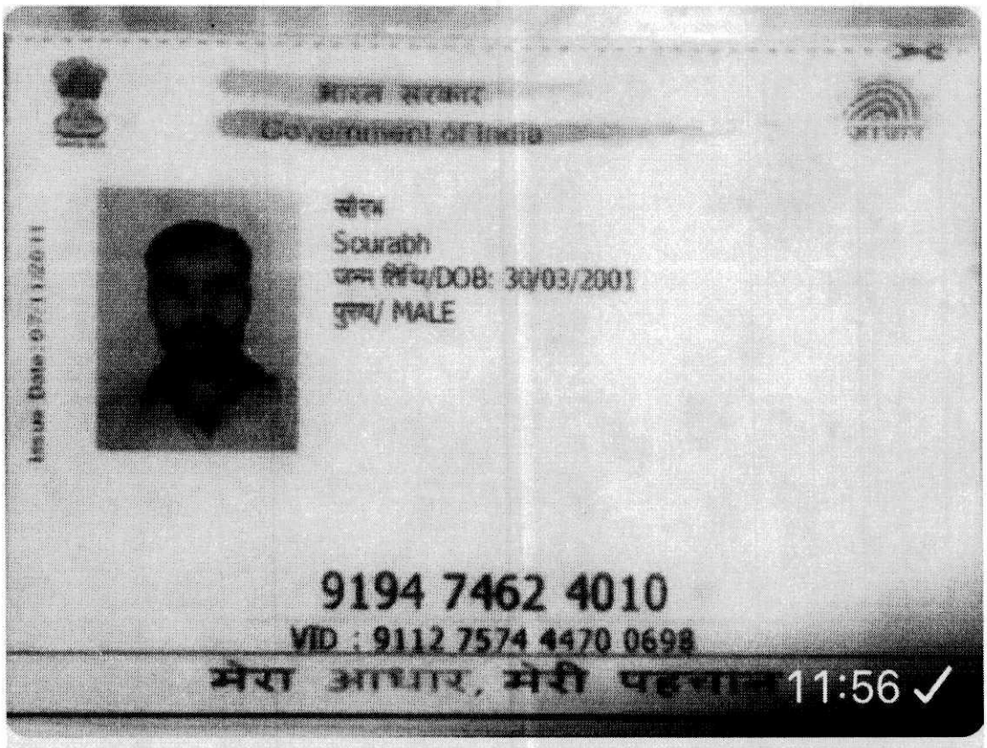

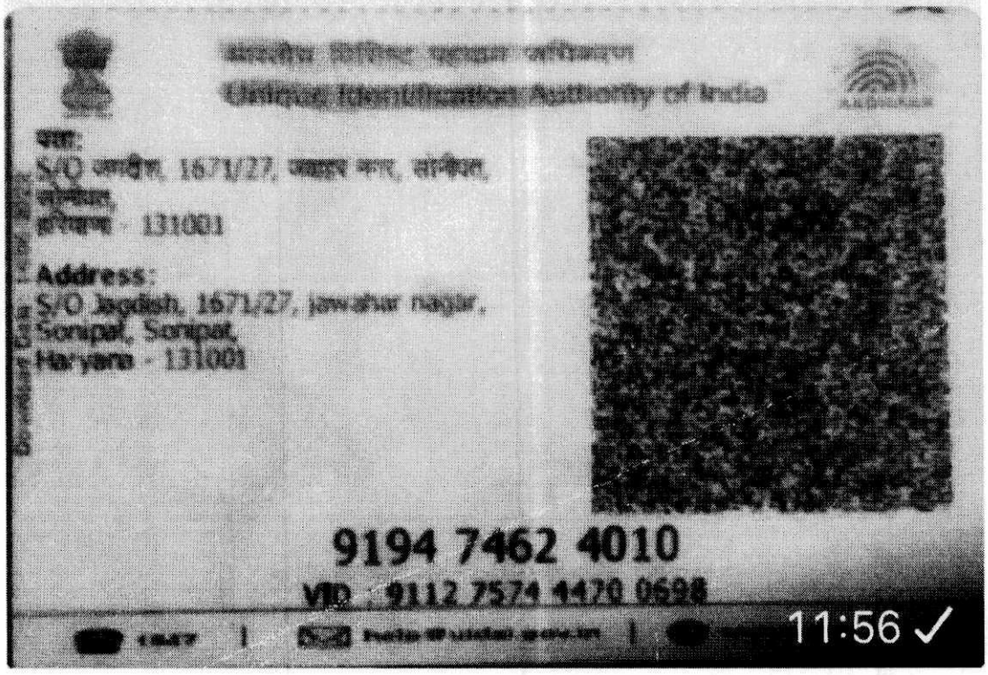

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